
More than Just a Footnote: Constructing a Theoretical Framework for Teaching about Gender in Negotiation

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The dominant paradigm in teaching about gender issues in negotiation over the past 25 years has been to treat the subject as one of difference — men negotiate one way, and women negotiate another way. While this can provoke interesting discussions, there are pitfalls in treating gender in this way. The author suggests two other ways to approach the subject matter: viewing gender as emergent in the negotiation process or taking a gender relations perspective that highlights some of the invisible aspects of negotiation. The author suggests ways to teach about gender in negotiation courses from each of these perspectives; these newer ways of teaching about gender in negotiation help make it a more integral part of the curriculum.

If I had to make a wager, I would bet that at in at least half of the negotiation courses we teach, there is at least one class session (or major part of a class session) devoted to gender. And to carry my luck further, I bet it is an “add-on” (like culture and perhaps race) that is dealt with some place near the end of the course.

Although the subject of gender appears in courses across the disciplinary spectrum, we lack a theoretical framework to help us decide how to treat the topic. In this brief essay, drawing on several different schools of feminist thought, I propose such a framework. One particular theory, gender

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difference, has dominated thinking about gender and guided how it is presented in the classroom over the past quarter century. I shall review that approach as well as also suggest other theories and elaborate on their implications and promise for the teaching of gender.¹ In particular, I suggest that other theoretical approaches offer us the opportunity not only to give our students different insights about gender, but also to weave insights about gender more directly into the curriculum. In this way, gender becomes much more than a footnote in a class; rather, the subject of gender can serve as a window into some critical processes in negotiation that can help our students become more effective.

Gender Difference

When Jeff Rubin and Bert Brown wrote *The Social Psychology of Bargaining and Negotiation* (1975), gender was a popular topic indeed. “Standing in stark contrast to the limited number of experimental studies of other background variables,” they wrote, “is an enormous array of bargaining research concerned with the variable of sex.” (Rubin and Brown 1975: 169). They speculated about the reasons for gender’s popularity as a research topic, most of which had to do with the relative convenience of the variable itself; the world is, after all, full of human beings who are female and male. In that book, the dominant view of gender was of sex differences, or sex as a variable. One of the major contributions of feminist theory since then has been to make our notions about gender social, which means that no natural alignment between biological and social sex differences necessarily exists. Instead, we look to social processes — the sexual division of labor, the differential development and socialization of boys and girls, occupational segregation — to understand what differences there might be between men and women.

But whether we are talking about sex or gender, the empirical research is concerned primarily with *difference* — do men and women negotiate differently? In a recent meta-analysis, Stuhlmacher and Walters (1999) find differences — women, for example, are more cooperative — but these differences for the most part are significant but small.

Two characterizations of difference have emerged from these lines of research about gender — the deficit model and the valuing difference model. In the deficit model, by far the most common, the focus is on the skills that men have and women lack. Others see difference and value it, articulating a woman’s point of view that brings heretofore unnoticed benefits to the negotiation process and the agreements it produces. From this perspective, a focus on relationships, the skills of empathy, the ability to manage conflict and collaboration simultaneously are thought (although not explicitly tested) to be advantageous in negotiations (Kolb and Coolidge 1992; Sheldon, 1993).

Teaching from a Gender Difference Perspective

When we teach from a gender difference perspective, the goal is to help students consider difference and its implications. In order to have this kind of discussion in the classroom, one has to create situations where differences have a good chance of occurring. This is not always an easy task; following are some commonly used techniques that negotiation teachers use.

Role plays. In the normal course of role plays, one can compare outcomes and process. To stimulate this discussion, one can group partners in such a way that comparisons become more salient — women with women and men with men. One cannot count on the fact that many differences will be observed (particularly in homogenous professional groups), but there might be some anecdotes for a class to consider (see Babcock and Riley [2000]). An alternative is to have women-women and men-men pairs negotiate in a fishbowl format. With an audience, it is more likely that differences will be observed (Parghi and Cody Murphy 1999).

Group discussion (same sex). Here men and women are broken into groups explicitly for the purpose of discussing differences. The teacher's question might be something like, "What differences have you noticed or what would you like the other sex to know about your negotiating style that is related to gender?" Heen (1996) used this approach in her debriefing, and then was able to capture differences in how men and women went about discussing the issue.

Cases with the names changed. One of the most intriguing ways to stimulate discussion about gender difference is to change the names of protagonists. That could be adopted in role plays, but it is a practice that also works well in case discussions. One carries out an analysis of a negotiation, then engages the class in a discussion of the difference it would make if the protagonist were of a different sex.²

While these approaches are probably among the most common ways that we engage our students about gender issues, they also can be problematic. There is, for instance, the issue of proof. If we observe no gender issues, does that mean none exist? Reviews of research suggest that one is less likely to observe gender differences in the laboratory (analogous to our classroom) than in the *real world* (Parghi and Cody Murphy 1999).

If students do observe gender differences, what does it mean? How do we account for these differences? It is here that we need to be especially careful. From the gender difference perspective, our explanations about difference are often traced to essential and fixed characteristics. Students, particularly women I find, understandably resist being "essentialized" as having fixed characteristics. One of the reasons for this reaction has to do with the kinds of differences that emerge. While it is convenient to treat these differences as equivalent — men focus on task, are objective and self-interested while women are empathetic and care about the process and the relationship

— the characteristics are not equally valued in society, and our students know that. Further, the research thus far shows that women do not do as well as men when negotiating, particularly on salary issues (Babcock and Riley 2000; Barron 1998; Calhoun and Smith 1999), although they might do better in other situations. We have to be very careful when we explore difference in the classroom because we run the risk of reinforcing a gender hierarchy.

Gender as Emergent in Interaction

The focus on gender difference treats identities as fixed. A shift to interaction moves from “fixed” individuals to the negotiation interaction itself, and the context within which the interaction takes place, as the nexus for the study of gender. From this perspective, gender is socially constructed, produced, and reproduced in interactions that occur in particular contexts; that is, we “do gender” in the process of negotiations (Howard and Hollander 1997; West and Zimmerman 1987).

“Doing gender” means behaving so that one’s behavior is seen in context as gender-appropriate. This focus on the interaction emphasizes the fluidity, flexibility, and variability of gender-related behaviors. If the question from the first perspective is, “Do men and women negotiate differently?” the questions an interactive perspective raises are, “When and under what conditions does gender shape the course of interactions?” (Deaux and Major 1990).

One way gender gets mobilized in negotiations has to do with identity, and how salient gender is to an individual negotiator. So, at the individual level, one can consider the degree to which negotiators identify with the masculine and/or feminine sides of themselves and take up those roles or positions in the process. From this perspective, a man might choose, either consciously or unconsciously, to act in a stereotypically masculine way — shouting, bullying, acting competitively — because he believes that the context prompts him to behave in this way. In parallel fashion, a woman might take up the role of helper or concentrate on the relationship because she perceives that the context calls for her to behave in that way. Negotiators, in other words, have some choice in the degree to which they take up gender roles in a negotiation.

Teaching Gender from an Interactive Perspective

Focusing on the interaction, rather than on essential differences, stresses the fluidity of gender. In my own work, we call this interactional process the “Shadow Negotiation,” to call attention to the tacit understandings we have about how we will negotiate and the role of gender in the process (Kolb and Williams 2000). In teaching from this perspective, the goal is to heighten awareness of the factors that shape how gender gets mobilized in negotiation settings and help students see what choices they have in the roles and positions they take up.

Roles and expectations. Negotiators may take up gendered roles for a host of reasons. It may be their personal proclivity or accustomed style, or it

may be because expectations of other negotiators prompt them to do so, or it may be because certain types of negotiations activate gender stereotypes. To teach about this, I often use short cases or vignettes. One that captures the interplay between individual style and expectations is the "Vacation Story."³ In that story, two managers opt for the same vacation, George, to take a fishing trip with friends, and Caroline, to move her mother into an apartment. George takes a hard line and tries to push Caroline into acceding to his demand for the week. Caroline takes responsibility for trying to come up with workable solution but George rejects every idea she proposes.

In discussing this vignette, the class can explore how gender plays out at the personal level, the degree to which the negotiators identify with the masculine or feminine sides of themselves. George exemplifies what we understand to be a masculine view of a negotiator. He is exclusively focused on his own interests. Caroline, on the other hand, acts in a more prototypic feminine way. She cares about her own needs, but also takes responsibility for how George feels and so tries to come up with a solution that will work for both of them. The expectations each has of the other reinforces gender stereotypes. George expects Caroline to be the concerned one, to take his interests into account and she expects him not to be, to focus more on himself and his interests.

The focus of the class discussion of this case is to help students see how gender stereotypes can play out in a negotiation.⁴ To have a discussion about how gender gets mobilized in negotiation, one needs interactive material. That can be found in short cases and vignettes that capture the unfolding of a negotiation and-or by tracking this kind of behavior in role plays. In this regard, video can be a particularly helpful teaching tool.

Seeing choices. An interactional approach, because it locates gender issues in negotiation interaction, opens up choices for how to deal with situations like Caroline's.⁵ Judith Lorber (1994) tells us that, in social interaction, men do dominance and women do deference and that's what George is trying to make happen. In our book, we call attention to actions like George's moves, to suggest that they are used sometimes unconsciously, but often strategically, to gain the upper hand (Kolb and Williams 2000). Among the examples of the kinds of moves that reinforce gender stereotypes and, more critically, work to undermine the credibility and legitimacy of a negotiator are: end runs around a boss; talk directed at a male member of the team, not the female chief negotiator; sexual innuendo; appeals for sympathy; charges of bullying; and displays of emotion. To stay in a credible and legitimate bargaining position, negotiators need ways to turn the situation, to reframe it such that the difference gender makes shifts from the foreground to the background.

Turning moves. Turning moves disrupt or resist a dominance-deference pattern (Gherardi 1996). To give students practice in turning moves, it is important to have access to some text (either written or video). I use a nego-

tiation between two sales managers about the transfer of accounts. The National Accounts Manager does not want to relinquish accounts and, in the negotiation, we see him use moves strategically to get the New Accounts Manager to defer to his judgment. While not all the moves have gender implications, many do and it is useful to suggest how turns — like interruption, naming the move, correcting it and diverting it to focus on problem — can shift the gender dynamic of the negotiation.⁶

I also have students work on vignettes in groups of three to strategize about how to handle these situations. They then try their hands at negotiating with one person observing.⁷ This structure enables group members to give each other feedback about how they responded to certain openings or particular moves or tactics. People rotate the roles, and so have a chance to see the situation from a variety of different perspectives. As a class, we develop a set of approaches that seem to work in some of these difficult situations. By generating lists of this sort, students can appreciate how much choice they do have to turn situations around.

The “A-team.” Another way to help students see the choices they have in negotiation is to have them form application groups, or “A-teams.” One of my goals in teaching negotiation is to model support to demonstrate that conferring with others can result in coaching from them, or helping a negotiator see more possibilities. Others can help a negotiator see the problem in a different light, offer experiences that bear on the current negotiation, and generally strategize about a difficult negotiation (Kolb and Williams 2000). Students are required to meet in A-teams at least five times during the course of the semester, and to report their learnings in a final group paper. By the conclusion of the course, the part-time MBA students who are working have often converted their A-team into an ongoing professional advisory group.

An interactional view of gender helps students appreciate some of the ways gender can play out in the shadow negotiations and the tactical choices they face. It also makes gender central to the course in that it also yields prescriptive advice about handling the more troublesome interpersonal dynamics in negotiation.

While an interactional focus is useful, sometimes it is difficult for students to see its relation to gender. If negotiation students expect to discuss gender differences — a common expectation — this approach may prove confusing. If one begins a vignette discussion with the question, “What does this have to do with gender?” there will likely be disagreement in the class. These can be productive discussions as they generally map to how many students in the class actually experience gender or not. What these discussions demonstrate is that gender is a slippery concept that can become a catch-all for all kinds of situations. Or it can be totally ignored.⁸

Gender Relations

There is another way to conceptualize gender in negotiation — it’s not about individuals, nor its contextual mobilization. From a gender relations perspec-

tive, gender is an organizing principle of social life (Acker 1986; Calas and Smircich 1996; Ely 1999; Fletcher 1999; Kilduff and Mehra 1997; Kolb and Putnam 1997).

With roots in a number of post-modern literatures, a gender relations perspective questions the seeming neutrality of what constitutes knowledge, and shows how power is exercised in our unquestioning acceptance of certain truths (Calas and Smircich 1996). From a gender relations perspective, we might ask how our models have the effect of creating and maintaining gender differences, differences where one truth — that which supports masculine experience — dominates other alternative truths, thereby precluding a whole range of unconsidered possibilities. A gender relations perspective constitutes a position from which to critique existing practice and expose new possibilities.

Let me offer an example: One of the research paradigms in negotiation is a multi-issue game, where optimal integrative outcomes are achieved by trading off issues (logrolling). This paradigm not only dominates empirical research but also underlies much of the theory and teaching curriculum in the negotiation field. From a gender relations perspective, one might say that one of the truths in our field is that integrative agreements come from trades made in multi-issue negotiations. That truth makes a concern for others or caring about relationships among intimates (feminine behaviors) seem less valuable. Further, a focus on trades as the major activity of bargaining renders invisible other ways that parties come to agreement (Putnam and Kolb 2000).⁹

Teaching from a Gender Relations Perspective

There are a number of ways to apply a gender relations perspective in the classroom.¹⁰ The challenge is to make visible the feminine values of connection and the process of relationship building that our normative theories tend to render invisible. Following are some ideas on how to do this.

The invisible work of relationship building. Building connection is another aspect of the shadow negotiation. I work with students to help them get into collaborative frames of mind, see how to structure appreciative conversations, and foster interdependence that is based on mutuality, not exclusively on BATNA (Cobb 1993; Fletcher 1999). Again, the use of vignettes and short cases can stimulate discussion.¹¹ In one such vignette, a Vice-President for Global Strategy negotiates with her peer, the Vice-President for Latin American Operations, over closing down a subsidiary. In a frustrating negotiation, each sees the other as encroaching on their turf and resents the interference.

We begin the class discussion by working on changing the story each tells about the other as preparation, focusing on five good reasons why they act the way they do. We then practice opening the negotiation in ways that provide legitimacy for each negotiator, often in a fishbowl format. How the other person feels is important data. Then, we look for ways to achieve

mutual buy-in to the problem (see Kolb and Williams 2000). Often in these discussions, connection leads to new understandings of the issues in dispute. From this kind of process, transformative solutions can emerge from a negotiation (Putnam and Kolb 2000).

Tracking collaboration. A gender relations perspective alerts us to the ways that more feminine values might be obscured or overpowered during negotiation. If we have a concern about this, then understanding the mechanisms for how this occurs is critical. One particularly promising approach focuses on paying attention to “problematic moments” (Cummings and Holvino 2000). For example, a problematic moment can be a moment of silence that marks a disruption to a particular discourse of values, beliefs, and-or assumptions. Using videotape, we look for moments of silence, often uncomfortable silences, or disjunctures, where the topic changes dramatically. The idea is that silence hints at tensions.

In playing back these moments, a group can reflect on what they really mean, and generate hypotheses for why they occur. Such an analysis enables individuals and the group to notice what happens, assess how their responses impact others, and to look for ways to change. This methodology has been effectively used to explore the intersections of race, class, and gender and captured many of the unconscious resistances of the group to doing so (Cummings and Holvino 2000). It offers an intriguing way to understand some of the ways collaboration and connection may be closed down in negotiation.

In Conclusion

The idea of incorporating gender into negotiation courses is something most faculty can agree on. Where one might find disagreement is on *how* one is to accomplish this goal. To focus on fixed gender difference, as is the norm, can have the effect of unintentionally reinforcing gender stereotypes that do not help students to become more effective negotiators.

What I have tried to suggest in this essay is that other approaches to gender offer us interesting opportunities. When we look at gender as an interactive phenomenon, we can help our students develop the “micro” techniques of moves and turns that help them in difficult situations. A gender relations approach enables us to make visible the collaborative and connective skills that are critical to negotiations. When we look at negotiation from these theories, and not solely from difference, gender is no longer just an add-on to the course but a theme that can be integrally woven through it.

NOTES

1. Many frameworks exist that describe feminist theory and its implication for research and organizational theorizing. See, among others, Calas and Smircich (1996); Fletcher (1999); Kolb and Meyerson (forthcoming); and Ely (1999). In creating this map, I have focused on perspectives that hold the most promise to inform teaching in the negotiation field.

2. The *Vanessa Abrams* case (Case Clearinghouse, Simmons Graduate School of Management), a negotiation about a noncompete clause, lends itself nicely to this kind of analysis. The negotiation between Vanessa and her boss escalates until he makes a move to force her to sign. Asking what would happen if Vanessa were "Van" leads to interesting discussions with people on both sides of the difference debate.

3. See "Gender and the Shadow Negotiation," *CGO Insight*, no. 2 (1998), Center for Gender in Organizations, Simmons Graduate School of Management.

4. Laura Kray and Leigh Thompson (2000) have done research activating gender stereotypes in negotiation. One might use this approach to create the possibility that gender would be mobilized in a negotiation.

5. Gender can play out in more structured ways. Negotiators in low-power situations are challenged to get negotiators to the bargaining table. The gendered structure of organizations also means that what men and women have to negotiate about might be quite different.

6. This case, called "Marilyn's Match-up," and other vignettes are available from the Case Clearinghouse, Simmons Graduate School of Management.

7. I find this rotating approach to dealing with difficult situations works better than a role play. I think it is hard to ask students to play difficult people and for others to be a victim. This looser format doesn't trap them into "unplayable" roles.

8. I often use these same vignettes to discuss tactics when gender is not the purpose. Paying attention to the micro techniques that such vignettes illustrate is useful for all negotiators.

9. It is always a challenge to propose a rethinking of a dominant discourse like exchange in negotiation. Any option that stands in comparison will appear deficient, devalued, and inadequate, since the standard of traditional perspectives has shaped our knowledge of a particular phenomenon. The traditional model becomes hegemonic and so closes out alternative ways of thinking (see Putnam and Kolb [2000]).

10. A gender relations perspective could also lead to discussions about unequal power in negotiations, the challenges of getting negotiated started in the first place and being heard once there. Further, the gendered structure of organizations means that often women negotiate about things men do not. For example, in another vignette, "Jane's Dilemma" (also available from the Simmons Case Clearinghouse), Jane is offered a developmental opportunity that only women are offered. It does not appear to be one that would enhance her career yet there is a norm in the organization to never say no to a developmental opportunity. To take it, Jane needs to negotiate credit (perhaps in monetary terms) for taking on this gendered role. Similarly, negotiating for flexible schedules are more likely, although not exclusively, to be undertaken by women.

11. "Amelia Rogers at Tassani Communications" (available from Harvard Business School Publishing) and "Marjorie's Mandate" (Case Clearinghouse, Simmons Graduate School of Management) are cases that lend themselves to discussions about how to solve problems collaboratively.

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